

the corpus of the estate, but out of the annual rents and profits, the Court looking to the hardship of allowing the interest to accumulate for years against the income, raises the capital only and gives no interest (a).

5. **Interest given, though portion not vested.** — Where there is the relation of father and child, or of a person standing *loco parentis* and a child, the natural duty and therefore the presumed intention of providing for the child is so strong as to have led to the establishment of peculiar principles. Some of these have already passed under review, and another is this:

Maintenance. — A *legacy* given to a *stranger* and payable at the age of twenty-one carries no interest in the meantime, but a legacy to a child being an infant (b) and payable at twenty-one, if maintenance be not otherwise provided for the child (c), carries interest with it (d) from the death of the testator, and not as in ordinary legacies from the expiration of one year from the testator's death (e). So a *portion* charged on land in favour of a child, whether made payable at a particular age or without any direction as to payment, will carry interest with it from the death of the testator.

Rate of interest. — But as the rate of interest is discretionary, the Court has not considered itself bound by the general rule of 4 per cent., but has regulated itself by the circumstances of each particular case. The application of these principles will be best understood by the following instances:

In *Warr v. Warr* (f) a father charged the estate with portions for younger children, "to be paid at *such time* as the trustees should *appoint* for their better maintenance and preferment." There were three younger children, a son and two daughters. The son was apprenticed to a sea captain

(a) *Ivy v. Gilbert*, 2 P. W. 13; *Evelyn v. Evelyn*, 2 P. W. 659. But see *Ravenhill v. Dansey*, 2 P. W. 170.

(b) *Raven v. Waite*, 1 Sw. 553.

(c) *Mitchell v. Bower*, 3 Ves. 287; *Long v. Long*, *Ib.* 286, note; *Wynch v. Wynch*, 1 Cox, 433.

(d) See *Crickett v. Dolby*, 3 Ves. 16; *Raven v. Waite*, 1 Sw. 557; *Beck-*

ford v. Tobin, 1 Ves. sen. 308; *Hill v. Hill*, 3 V. & B. 183; *Tyrrell v. Tyrrell*, 4 Ves. 1; *Chambers v. Goldwin*, 11 Ves. 1; *Lowndes v. Lowndes*, 15 Ves. 301.

(e) *Cary v. Askew*, 1 Cox, 241; *Mole v. Mole*, 1 Dick. 310.

(f) *Pr. Ch.* 213.